

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cristal Rivera	Team: Team # 1	CCRB Case #: 200709977	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/10/2007 10:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/10/2009	Precinct: 70		
Date/Time CV Reported Thu, 07/12/2007 2:32 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/12/2007 2:32 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Dennis Bowen	02541	917047	NARCBBS
2. POF Megan Omalley	06355	930859	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anzelmo Giovannello	30015	932713	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . SGT Dennis Bowen	Discourtesy: Sgt. Dennis Bowen spoke obscenely and/or rudely to § 87(2)(b)	A . Unsubstantiated
B . SGT Dennis Bowen	Abuse: Sgt. Dennis Bowen stopped § 87(2)(b)	B . Substantiated
C . SGT Dennis Bowen	Abuse: Sgt. Dennis Bowen stopped § 87(2)(b) and § 87(2)(b)	C . Alleged Victim Unavailable
D . SGT Dennis Bowen	Abuse: Sgt. Dennis Bowen frisked § 87(2)(b)	D . Substantiated
E . SGT Dennis Bowen	Abuse: Sgt. Dennis Bowen searched § 87(2)(b)	E . Substantiated
F . POF Megan Omalley	Discourtesy: Officer Megan Omalley spoke obscenely and/or rudely to § 87(2)(b)	F . Unsubstantiated
G . SGT Dennis Bowen	Force: Sgt. Dennis Bowen used physical force against § 87(2)(b)	G . Unsubstantiated
H . SGT Dennis Bowen	Abuse: Sgt. Dennis Bowen threatened to arrest § 87(2)(b)	H . Unsubstantiated

Synopsis

On July 10, 2007, at approximately 10:10pm, Sgt. Dennis Bowen, PO Megan O'Malley, and PO Anzelmo Giovaniello, of Brooklyn South Narcotics, were driving on § 87(2)(b) towards § 87(2)(b) in Brooklyn. The officers observed three black males. Two males, identified as § 87(2)(b) and § 87(2)(b) were seated in the front seats of a parked sedan, and one male, identified as § 87(2)(b) was standing near the passenger side door. § 87(2)(b) and § 87(2)(b) were allegedly hunched over the dashboard, while § 87(2)(b) leaned towards the passenger side window from the sidewalk. Sgt. Bowen, PO Giovaniello and PO O'Malley had a discussion prior to exiting the vehicle and agreed that these actions were indicative of grand larceny. Sgt. Bowen made the decision to approach the individuals.

Sgt. Bowen approached § 87(2)(b) and allegedly told him, "Shut the fuck up," and said to place his hands on the vehicle (**Allegations A and B**). PO Giovaniello and PO O'Malley approached § 87(2)(b) and § 87(2)(b) (**Allegation C**). Sgt. Bowen conducted a frisk of § 87(2)(b)'s person (**Allegation D**). § 87(2)(b) alleged that Sgt. Bowen searched his pants pockets (**Allegation E**). § 87(2)(b) also alleged that during the course of the frisk Sgt. Bowen pushed his head onto the hood of the vehicle and squeezed his testicles numerous times (**Allegation F**).

While Sgt. Bowen frisked § 87(2)(b) PO O'Malley turned to him and allegedly said, "You look like a fucking crack head! Are you a crack head?" (**Allegation G**). § 87(2)(b)'s identification was obtained by Sgt. Bowen and shortly thereafter he was informed that he could leave. § 87(2)(b) was instructed to leave the scene of the incident. As § 87(2)(b) walked towards his building Sgt. Bowen arrested another individual, identified as § 87(2)(b) who was part of a crowd that had formed across the street. Sgt. Bowen noticed § 87(2)(b) and allegedly told him, "Get the fuck out of here! If I have to tell you one more time, you are going to jail." (**Allegation A Continued and H**). § 87(2)(b) entered his building and did not witness anything further.

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) did not respond to the undersigned investigator's contact attempts. § 87(2)(g) it is recommended that allegations A be closed as unsubstantiated, allegations B, D, and E be closed as substantiated, allegation C be closed as victims unavailable, and allegations F through H be closed as unsubstantiated.

Summary of Complaint

On July 12, 2007, § 87(2)(b) a § 87(2)(b) black male, filed this complaint with the CCRB via telephone [Encl. 5a-5c], and on July 25, 2007, § 87(2)(b) provided a telephone statement [Encl. 6a] to the CCRB. He was interviewed at the CCRB on August 16, 2007. § 87(2)(g)

On July 10, 2007, at approximately 10:15pm, § 87(2)(b) exited his apartment, located at § 87(2)(b) in Brooklyn. He was wearing black track pants and a black t-shirt. § 87(2)(b) is a residential area, and there is two-way traffic. The street is lined with streetlights, which make it well lit, and on this date the night was clear. There were approximately ten people outside in the vicinity of § 87(2)(b), talking and playing games.

§ 87(2)(b) walked to the corner store at the intersection of § 87(2)(b) and § 87(2)(b) and purchased a bottled drink. He did not stop to converse with anyone nor did he make any physical contact with anyone while he was walking. § 87(2)(b) did not engage in conversation with any people seated inside of a parked vehicle. He was walking on the sidewalk and was approximately five to eight feet away from the parked vehicles along the side walk.

As § 87(2)(b) walked down the street he noticed a minivan driving up the right side of the street. § 87(2)(b) immediately noticed the driver, later identified by § 87(2)(b) as Sgt. Dennis Bowen, because he was staring at § 87(2)(b) as he drove past him. Within a few seconds the vehicle stopped and Sgt. Bowen exited the vehicle along with two other officers, identified through the investigation as PO Megan O'Malley and PO Anzelmo Giovaniello. § 87(2)(b) remained on the sidewalk and continued walking towards his residence.

Sgt. Bowen approached § 87(2)(b). § 87(2)(b) asked Sgt. Bowen, "What's going on?" Sgt. Bowen told § 87(2)(b) "Shut the fuck up! Put your hands on the car." Sgt. Bowen put his hand on his gun, which was still in the holster on his hip, as he continued to walk towards § 87(2)(b). § 87(2)(b) said, "Hey, hey I live right here." § 87(2)(b) lifted his hands from his sides and placed them on a parked car. At this point § 87(2)(b) could not see PO O'Malley or PO Giovaniello. Sgt. Bowen instructed § 87(2)(b) "Look forward, don't turn around." § 87(2)(b)'s head was facing straight forward, therefore he was not able to see peripherally if there were others stopped alongside of him. Sgt. Bowen placed his hand in the middle of § 87(2)(b)'s back and instructed him to spread his legs. Sgt. Bowen kept his left hand against § 87(2)(b)'s lower back and frisked him with his right hand. Sgt. Bowen ran his hand over § 87(2)(b)'s front and rear boxer strap. Sgt. Bowen pulled § 87(2)(b)'s track pants in the back, meaning he pulled the elastic waist strap away from § 87(2)(b)'s skin, which left § 87(2)(b) with his boxers exposed in the street. People in the street were yelling, "Leave him alone, he is practically naked!"

Sgt. Bowen switched his hands, so that his right hand was holding § 87(2)(b)'s pants open and his left hand was free to frisk and search his body. § 87(2)(b) described the search as Sgt. Bowen running his hands over his body and entering his pants pockets. Sgt. Bowen ran his hand up and down § 87(2)(b)'s leg, upon reaching the crotch area he grabbed § 87(2)(b)'s testicles and squeezed them through his pants. § 87(2)(b) jumped in pain. § 87(2)(b) did not say anything. Sgt. Bowen then again ran his hand up § 87(2)(b)'s legs and squeezed his testicles again. At this point § 87(2)(b) turned around and said, "Excuse me, what are you doing? You are squeezing my balls, what are you doing? I have nothing in my pants." Sgt. Bowen told him, "Shut the fuck up and turn around." § 87(2)(b) stated that he never physically moved, except when he jolted from the pain, which he described as a flinch. Sgt. Bowen continually searched § 87(2)(b)'s pockets and squeezed his testicles through his pants approximately ten times.

Sgt. Bowen never put his hand inside § 87(2)(b)'s pants, except to search the lining of his pants near his waistband.

Sgt. Bowen turned around and instructed PO O'Malley and PO Giovaniello to stop other people in the area. § 87(2)(b) turned his head to the left in order to see the others who were stopped and Sgt. Bowen told him, "Turn around." § 87(2)(b) informed Sgt. Bowen that he had no right to search him. Sgt. Bowen turned towards § 87(2)(b) and said, "Yo, chill son. Chill with your jailhouse lawyer bullshit." § 87(2)(b) stated that Sgt. Bowen was speaking in "street slang," which he perceived as Sgt. Bowen mocking him. PO O'Malley was standing at the rear of the parked vehicle. She asked § 87(2)(b) "Are you on drugs? You look like you do drugs. Are you a fucking crack head?" § 87(2)(b) replied, "I don't do drugs." PO O'Malley said, "You are a crack head." While she was talking to him she had a person against the vehicle but § 87(2)(b) was not able to get a visual of the person since he was instructed to face forward.

Sgt. Bowen had his hand on § 87(2)(b)'s lower back and was talking with PO O'Malley and PO Giovaniello. Sgt. Bowen pushed § 87(2)(b) towards the vehicle by placing a hand on his lower back area and pushing § 87(2)(b)'s torso towards the vehicle. § 87(2)(b)'s upper body was laying flat on the vehicle's hood. Sgt. Bowen continually instructed § 87(2)(b) "Keep your hands on the car. Look forward!" Sgt. Bowen pushed § 87(2)(b) onto the vehicle and removed his wallet from his pocket. Sgt. Bowen then instructed § 87(2)(b) to remove his identification from the wallet, which he did. Sgt. Bowen took the identification and gave it to either PO Giovaniello or PO O'Malley. § 87(2)(b) thought he was going to be arrested because Sgt. Bowen removed his handcuffs.

§ 87(2)(b) was given back his identification a few minutes later and was allowed to stand up. § 87(2)(b) asked Sgt. Bowen, "Am I allowed to leave?" Sgt. Bowen informed him that he could not leave. § 87(2)(b) explained that he lived across the street, and that it was ridiculous that he had been there for fifteen minutes. § 87(2)(b) asked Sgt. Bowen, "Am I under arrest?" Sgt. Bowen said, "No." § 87(2)(b) asked, "Can I leave now?" Sgt. Bowen said, "No." § 87(2)(b) then asked why he was not allowed to leave if he was not arrested. PO Giovaniello then said, "This is what is going to happen when police get shot. You all got to get used to this around here." § 87(2)(b) explained that a few days prior PO Timoshenko was shot in the area, approximately nine blocks away. § 87(2)(b) told PO Giovaniello, "That's crazy, I didn't shoot anyone." At this point the people across the street were yelling, "That's crazy, they didn't do anything!" Sgt. Bowen then told § 87(2)(b) "Get the fuck out of here!" § 87(2)(b) said, "That's it? What is your name?" Sgt. Bowen then responded by informing him, "Bowen." § 87(2)(b) asked to see his badge, and Sgt. Bowen removed it from underneath his shirt. He placed the badge within a few inches of § 87(2)(b)'s face. § 87(2)(b) backed up a step and took note of the badge number. After he saw the badge he began to walk away, and Sgt. Bowen yelled, "Get the fuck out of here. If I have to tell you one more time, you are going to jail."

§ 87(2)(b) walked across the street to his apartment building, which was diagonal from where he was stopped. As he left the officers got into their vehicle. The people on the sidewalk were yelling, "That's ridiculous!" Sgt. Bowen exited the vehicle from the passenger side and ran towards a group of approximately ten people. Sgt. Bowen grabbed a male that had been standing in the area, identified as § 87(2)(b), handcuffed him, and put him in the vehicle. § 87(2)(b) was standing on the front steps of his building. Sgt. Bowen yelled at § 87(2)(b) "Get the fuck out of here." The crowds of people were yelling at the officers about their behavior towards § 87(2)(b) but nobody attempted to get physically involved.

Results of Investigation

Attempts to Contact Additional Witnesses

On August 29, 2007 and December 17, 2007, canvasses were conducted of § 87(2)(b). Letters were posted in the buildings surrounding the area, and all of the mailboxes were scanned for information relating to § 87(2)(b) or § 87(2)(b). The results were negative. [Encl. 19a-19k]

A search was conducted on BADS for previous arrest reports, but the addresses were the same for all of their previous arrests. On September 6, 2007, initial contact letters were sent to the addresses provided on the arrest reports for § 87(2)(b) and § 87(2)(b). Both letters were returned on September 12, 2007. Searches were conducted in Yellowpages, BADS, COLES, and DMV for additional contact information, and found one phone number for § 87(2)(b). On September 12, 2007, the investigator called the phone number provided for the COLES address of § 87(2)(b) but was informed that he did not reside at that address. On September 19, 2007, the stop-and-frisk reports for § 87(2)(b) and § 87(2)(b) were requested with negative results. On September 20, 2007, a Lexis Nexis search was conducted for § 87(2)(b) and § 87(2)(b). Initial contact letters were sent to the addresses provided as a result of this search and a phone call was made to the number provided for § 87(2)(b) but there was no answer. Between October 11 and 19, 2007, seven phone calls were made to § 87(2)(b) yet they yielded negative results. On November 14, 2007, a phone call was made to § 87(2)(b)'s number and it was disconnected.

As a result of PO Giovaniello's interview the third male was identified as § 87(2)(b). On November 20, 2007, searches were performed on COLES, DMV, Lexis Nexis, and Yellowpages for contact information. On November 21, 2007, initial contact letters were sent to various addresses that appeared to match § 87(2)(b)'s information. Between November 21, 2007, and December 19, 2007, four phone calls were made to § 87(2)(b)'s possible phone numbers identified via Lexis Nexis, and they were disconnected. On January 9, 2008, phone calls were made to these numbers again, one of which was disconnected. Contact was made on the second number, and a female, identified as § 87(2)(b), answered the phone, but stated that § 87(2)(b) did not reside at this address.

On December 6, 2007, a second Lexis Nexis search was conducted for § 87(2)(b)'s contact information and yielded a new address. An initial contact letter was sent, but was returned to the CCRB.

As a final attempt to contact these witnesses, final contact letters were sent to § 87(2)(b) and § 87(2)(b) on January 13, 2008, which yielded negative results. A call to the inmate locator service confirmed that § 87(2)(b) and § 87(2)(b) were not in custody.

Officer Statements

Sgt. Dennis Bowen

On December 19, 2007, Sgt. Denis Bowen was interviewed at the CCRB [Encl. 7a-7f]. On July 10, 2007, Sgt. Bowen was working a tour of 9:00pm to 4:35am. He was assigned as the 70th Precinct Narcotics Module supervisor, and was working with PO O'Malley and PO Giovaniello. Sgt. Bowen had no memo book entries for this incident. He had noted in his memo book at the end of his tour that he had seven under by PO Giovaniello. [Encl. 7a-7b]

On July 10, 2007, at approximately 10:00pm, Sgt. Bowen was on patrol in the area of § 87(2)(b) and § 87(2)(b). Sgt. Bowen did not recall if there was any particular reason they were patrolling § 87(2)(b) on this date, or if they had any specific function as members of the narcotics team. Sgt. Bowen stated he received community complaints for the corner of § 87(2)(b) and § 87(2)(b) for narcotics sales, but did not know if there were any for this date specifically.

§ 87(2)(b) is residential and commercial, and is relatively busy with pedestrian traffic. Sgt. Bowen stated that there were street lights, which provided a clear visual. Sgt. Bowen noticed two males, identified through the investigation as § 87(2)(b) and § 87(2)(b) seated in the front of a parked four-door Sedan. There was another individual standing outside of the vehicle, identified as § 87(2)(b). § 87(2)(b) and § 87(2)(b) were in the vehicle hunched over the dashboard. Sgt. Bowen's observation led him to believe that they were attempting to steal the vehicle, but was not able to articulate further reasoning for having this belief. The vehicle was legally parked along the sidewalk, but he did not recall if the engine was running. § 87(2)(b) was standing by the passenger side of the vehicle, approximately a half-step from the car, leaning towards the window. Sgt. Bowen made this observation from his vehicle while driving down § 87(2)(b). He initially noticed the males when he was approximately three car lengths away. He estimated that his observation was less than thirty seconds. Sgt. Bowen did not recall who noticed the individuals first, and he did not recall having any type of conversation prior to stopping the police vehicle.

Initially Sgt. Bowen stated that he observed, from his vehicle, either § 87(2)(b) or § 87(2)(b) with a screwdriver in hand, but later stated that he did not make this observation until he approached the vehicle on foot. Sgt. Bowen clarified that his observation of the screwdriver was subsequent to his decision to approach the males for suspicion of grand larceny. Sgt. Bowen was not able to describe the screwdriver, nor was he able to say which occupant was holding the screwdriver. Sgt. Bowen stated that § 87(2)(b) did not have the screwdriver because he observed it in the possession of either § 87(2)(b) or § 87(2)(b) who were seated in the vehicle. Sgt. Bowen explained that he believed either § 87(2)(b) or § 87(2)(b) had a screwdriver in his hand and was using it to do "something" to the dashboard. Sgt. Bowen was not able to describe the actions that the males were engaging in with the screwdriver, but these unspecified actions took place in the dashboard area.

Sgt. Bowen parked behind the vehicle where the alleged suspicious activity took place. He exited the vehicle and approached from the rear along with PO O'Malley and PO Giovaniello. Sgt. Bowen approached the male who was standing on the sidewalk, but did not recall where PO O'Malley and PO Giovaniello approached. Sgt. Bowen did not recall if he or any other officers had their flashlights out. At this point Sgt. Bowen's intent on approaching the individual who was standing on the sidewalk was to investigate whether he was attempting to steal the vehicle.

Sgt. Bowen approached § 87(2)(b) and identified himself as a member of service. Initially Sgt. Bowen explained that § 87(2)(b) reacted by being "combative," which he described as § 87(2)(b) removing his hands from the vehicle and gesturing towards his waistband. Sgt. Bowen later stated that upon approaching § 87(2)(b) he observed that § 87(2)(b) had his hands either in his pockets or "at his sides," meaning outside of his pockets but by his hips. § 87(2)(b) appeared to have nothing in his hands. Sgt. Bowen then identified himself as an officer, and § 87(2)(b) moved his hands from his sides

to raise them towards his waist area. Sgt. Bowen understood this as a “furtive movement” and asked § 87(2)(b) to place his hands on the vehicle. Sgt. Bowen explained that at this point he feared for his safety because he remembered that he had observed a screwdriver, although he later stated that he did not make any observations that led him to believe that § 87(2)(b) had any weapons.

Within a few minutes Sgt. Bowen was informed that PO Giovaniello found marijuana inside of the vehicle, but did not know where or how it was obtained. Sgt. Bowen did not see the marijuana inside of the vehicle because he was interacting with § 87(2)(b). At this point § 87(2)(b) was moving his hands towards his waist. Sgt. Bowen believed that § 87(2)(b) was attempting to distract the officers from the marijuana in the vehicle. Sgt. Bowen was not able to estimate how long he was speaking with § 87(2)(b) before the marijuana was recovered from the vehicle. At this point, a crowd was forming across the street.

Sgt. Bowen conducted a frisk of § 87(2)(b) which began with his waist area and then continued over his legs and torso. He frisked his entire body for a weapon. The frisk yielded negative results. Sgt. Bowen later stated that § 87(2)(b) made furtive movements while he was conducting the frisk. Sgt. Bowen clarified that initially § 87(2)(b) moved his hands once towards his waist, but did not make contact with his body, at which point Sgt. Bowen instructed him to put his hands against the vehicle. Sgt. Bowen did not ask § 87(2)(b) any questions prior to conducting the frisk. Sgt. Bowen stated that at no point did § 87(2)(b)'s pants fall below his boxers. Sgt. Bowen stated that he had no further contact with § 87(2)(b) and no other officers interacted with him. He did not conduct a search of his person. Sgt. Bowen did not recall if identification was obtained from § 87(2)(b) but stated that a stop and frisk report was generated. He could not explain how the information was obtained for the UF-250.

Sgt. Bowen did not know where § 87(2)(b) was seated in the vehicle. Sgt. Bowen stated that he had no knowledge of the marijuana inside of the vehicle until PO Giovaniello removed § 87(2)(b) from the vehicle and placed him in handcuffs. He did not know what was going on inside of the vehicle because he was conducting the stop of § 87(2)(b). At this point a crowd of approximately fifteen people had gathered around the area and one civilian, identified as § 87(2)(b) § 87(2)(b) approached Sgt. Bowen and was yelling, “We are getting tired of you officers around here! All of you officers should be shot, like PO Timoshenko!” Sgt. Bowen instructed PO Giovaniello to write stop-and-frisk reports for the individuals who were not being arrested and to take the arrested individual into the unmarked vehicle. Sgt. Bowen wanted to leave the scene of the incident because the crowd was becoming more hostile and he feared for his officers’ safety. Sgt. Bowen did not call for back-up because he intended to write the stop-and-frisk reports and leave immediately.

Sgt. Bowen clarified that § 87(2)(b) was not arrested because PO Giovaniello’s investigation made it clear that the marijuana belonged to § 87(2)(b). PO Giovaniello conducted investigative steps to determine the ownership of the vehicle, and that it was not stolen. Sgt. Bowen did not know how this was accomplished, but he knew that PO Giovaniello was responsible for conducting the investigation. Sgt. Bowen could not provide any information as to what PO Giovaniello and PO O’Malley were doing during this incident, except that they were conducting the investigation into the vehicle and its occupants.

Sgt. Bowen was standing within a few steps of the vehicle that was under investigation, but did not hear anything that was going on regarding the vehicle investigation. Sgt. Bowen knew § 87(2)(b) and § 87(2)(b) were removed from the vehicle, but was not able to provide a chronology of when they were asked to exit the vehicle. Sgt. Bowen did not recall if anyone was inside of the vehicle when he frisked § 87(2)(b).

PO Giovaniello informed Sgt. Bowen at the scene of the incident that the marijuana was recovered from the floor of the vehicle. Sgt. Bowen only saw the marijuana after it was in PO Giovaniello’s custody, but Sgt. Bowen did not recall how much marijuana was recovered or the form in which it was packaged. Sgt. Bowen never spoke with PO O’Malley about her role during the incident. The screwdriver was never recovered. Sgt. Bowen never told § 87(2)(b) “Shut the fuck up. Chill with your jailhouse bullshit.” Sgt. Bowen never pushed § 87(2)(b)'s head against the vehicle, nor did he use profanity. Sgt. Bowen viewed the voucher invoice for the marijuana obtained from the vehicle, which he confirmed was in fact

what he recalled. Sgt. Bowen also viewed the field test results as positive, and confirmed that the information was accurate. Sgt. Bowen never entered the vehicle where the marijuana was recovered. Sgt. Bowen did not recall what § 87(2)(b) was wearing, and never grabbed or squeezed his testicles during the frisk, or at any point during the incident.

PO Megan O'Malley

On September 18, 2007, PO Megan O'Malley was interviewed at the CCRB [Encl. 8a-8e]. On July 10, 2007, PO O'Malley worked a tour of 8:00pm to 4:27am. She was working street narcotics investigations with PO Giovanello. They were dressed in street clothes, and assigned to a blue Toyota Sierra. PO O'Malley did not recall where she was seated in the vehicle. She was working with PO Anzelmo Giovanello and Sgt. Dennis Bowen. PO O'Malley noted in her memo book at 10:05pm, she stopped one male, identified as § 87(2)(b) in front of § 87(2)(b).

On July 10, 2007, at approximately 10:00pm, PO O'Malley was patrolling the area of § 87(2)(b) in Brooklyn, when she observed a group of males, three of whom were identified through the investigation as § 87(2)(b), § 87(2)(b), and § 87(2)(b) standing around a vehicle. She did not recall if the vehicle was running or turned off. PO O'Malley initially was not able to identify which male was § 87(2)(b) but the investigation determined that he was one of the males standing outside of the vehicle upon the initial approach. PO O'Malley stated that there were no people inside of the vehicle at this point. One of the males appeared to have a screwdriver in his hand, but PO O'Malley was not able to identify this male or describe him physically. She later stated that she did not recall if there were any males seated inside of the vehicle during the initial approach, while the male was pressing the screwdriver against the passenger side door, or at any point thereafter. PO O'Malley found him to be suspicious because he had a screwdriver, and was pressed against the passenger side door, which faced the sidewalk. PO O'Malley's intent was to question the male with the screwdriver and verify if he or the other males owned the said vehicle.

PO O'Malley, Sgt. Bowen, and PO Giovaniello exited the vehicle. PO O'Malley spoke with one unidentified male. Sgt. Bowen and PO Giovaniello initially were standing with her, but other males from the crowd attempted to get involved, therefore Sgt. Bowen and PO Giovaniello spoke with the other males. PO O'Malley was not able to provide a chronology as to when or how others were approached. She also could not say where Sgt. Bowen and PO Giovaniello went or with whom they spoke. She did not know if they stopped, searched, or frisked any individuals at the scene.

Initially, PO O'Malley stated that upon exiting the vehicle, she saw a crowd of people around the vehicle, acting hostile, but she later stated that the crowd was not present until later. PO O'Malley spoke with a black male on the street, but could not identify him during her CCRB interview. The only male from the crowd whom she could identify by name was § 87(2)(b) because he was arrested § 87(2)(b). PO O'Malley knew that the marijuana was recovered from inside of the vehicle and that it was in plain view. She stated that she never saw the marijuana in the vehicle and was not able to provide any further context in regards to the marijuana. She could not provide a description of the other males standing around the vehicle, in terms of their race, physical description, or clothing.

PO O'Malley never spoke with the individual who had the screwdriver in his hand, and only spoke with § 87(2)(b). The conversation she had with § 87(2)(b) regarded the vehicle and identifying the ownership. § 87(2)(b) explained who owned the vehicle, but PO O'Malley did not recall the explanation. She knew that § 87(2)(b)'s statement clarified that the vehicle was not stolen. PO O'Malley could not describe how the marijuana was found or when this occurred. The marijuana was recovered by PO Giovaniello, but she did not recall anything specific as to what happened, where or when it was found. PO O'Malley stated that as the incident continued the crowd became larger and more hostile. When asked to describe the crowd's behavior, she stated they attempted to become physically involved in the arrest of § 87(2)(b) but was not able to specifically articulate how they attempted to do so. PO O'Malley later stated that the crowd consisted of approximately twelve people, and they were shouting, "All cops should be shot!" PO O'Malley was at the scene of the incident for no longer than five minutes.

PO O'Malley never heard Sgt. Bowen threaten to arrest anyone. She clarified that the members of the crowd could have been arrested for numerous violations, such as: disorderly conduct, obstructing governmental administration, and disobeying lawful orders. PO O'Malley never used obscene language when speaking with any of the males at the scene, nor did she hear Sgt. Bowen or PO Giovaniello use such language. PO O'Malley did not recall if Sgt. Bowen had any verbal or physical interaction with any of the people in the area.

PO Anzelmo Giovaniello

§ 87(2)(b), § 87(2)(a)

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

CCRB Statement

On September 19, 2007, PO Anzelmo Giovaniello was interviewed at the CCRB [Encl. 13a-13f]. On July 10, 2007, PO Giovaniello worked a tour of 8:00pm to 4:27am, with PO Megan O'Malley and Sgt. Dennis Bowen. PO Giovaniello was the arresting officer. PO Giovaniello noted in his memo book that at 10:00pm, he had one male arrested § 87(2)(b) on § 87(2)(b). He had prepared UF-250s in relation to this incident. They were produced for § 87(2)(b) and § 87(2)(b) and his address, date of birth, and social security numbers were noted. [Encl. 13a-13c]

On July 10, 2007, at approximately 10:00pm, PO Giovaniello was driving down § 87(2)(b) at a slow rate of speed because it is a drug-prone location. PO Giovaniello did not recall if there were any particular observations they were conducting on this date, but he stated that his team had received many complaints of grand larceny in the area.

PO Giovaniello and his team noticed a group of males standing around a parked vehicle across the street from § 87(2)(b). PO Giovaniello noticed two individuals, identified as § 87(2)(b) and § 87(2)(b) inside of a vehicle, and another standing outside of the vehicle, identified as § 87(2)(b). PO Giovaniello was approximately three car lengths away when he first noticed these males. The street lighting is fair in this area, but he did not recall if he had a clear view. PO Giovaniello stated that § 87(2)(b) was standing outside of the passenger side window leaning against the vehicle, while § 87(2)(b) and § 87(2)(b) were seated in the front seats. PO Giovaniello pulled over because his level of suspicion was raised by their behavior, and he believed they were attempting to steal the vehicle. § 87(2)(b) and § 87(2)(b) were crouching down towards the dashboard and § 87(2)(b) was directly outside of the window, leaning towards the vehicle, which made him believe that they could be attempting to steal the vehicle. PO Giovaniello was not able to provide any further explanation as to why he believed these actions to be indicative of grand larceny. They stopped with the intent to conduct an investigation for grand larceny.

PO Giovaniello, PO O'Malley, and Sgt. Bowen exited the vehicle and approached the vehicle together, but PO Giovaniello did not recall which side of the vehicle he approached. PO Giovaniello spoke with either § 87(2)(b) or § 87(2)(b) both of whom were occupants in the vehicle. PO Giovaniello's investigative steps consisted of asking for identification and obtaining the relevant paperwork for the

vehicle, but PO Giovanniello did not recall if the paperwork was ever produced. PO Giovanniello conducted his investigation into the vehicle, and found that the vehicle was not stolen. He did not recall the steps he took in verifying this information, but he knew that the investigation yielded a negative result for grand larceny. However, PO Giovanniello saw marijuana in plain view inside of the vehicle, which “granted him probable cause to arrest.” PO Giovanniello observed the marijuana inside on the floor of the vehicle. He did not recall where on the floor of the vehicle the marijuana was located. PO Giovanniello did not recall if he or his partners had their flashlights out at this time. PO O’Malley and Sgt. Bowen may have observed the marijuana in the vehicle as well, but he was not sure because he did not recall what they were doing at the time. PO Giovanniello did not recall how it was packaged or if it was packaged at all. PO Giovanniello clarified that § 87(2)(b) stated that it was his marijuana, and therefore he did not arrest § 87(2)(b). PO Giovanniello stated that he did not recall detailed information surrounding the arrest of § 87(2)(b) nor did he recall what happened to § 87(2)(b) or § 87(2)(b).

PO Giovanniello did not recall who spoke with § 87(2)(b) during the incident. PO Giovanniello did not recall if § 87(2)(b) had any relationship to § 87(2)(b) or § 87(2)(b) and his investigation did not yield any information that led him to believe that § 87(2)(b) was involved with the marijuana inside of the vehicle.

There was a large crowd standing around the area and they were attempting to get involved in the incident by yelling, “All officers should be shot.” There was one black male, identified through the investigation as § 87(2)(b) who ran from across the street to the vehicle and attempted to get physically involved in § 87(2)(b)’s arrest. PO Giovanniello was still conducting his investigation when § 87(2)(b) ran from across the street and spoke with PO Giovanniello. § 87(2)(b) was yelling and causing a crowd to gather in the area. PO Giovanniello could not estimate how many people were outside, or at what point they gathered, but additional people gathered in the area once § 87(2)(b) began yelling. The officers arrested § 87(2)(b).

PO Giovanniello was presented with the property vouchers and confirmed that the marijuana was packaged in a Ziplock bag. PO Giovanniello did not recall if a search was performed of the vehicle, nor did he know if Sgt. Bowen or PO O’Malley searched the vehicle.

PO Giovanniello did not recall obtaining § 87(2)(b)’s identification, although he had it in his possession at some point to prepare the UF-250. He prepared stop-and-frisk reports for § 87(2)(b) and § 87(2)(b). PO Giovanniello did not recall if § 87(2)(b) was ever searched. PO Giovanniello stated that § 87(2)(b)’s pants were never moved below his boxers, and PO Giovanniello did not have physical contact with § 87(2)(b). PO Giovanniello never used or heard anyone use profanity when speaking with any of the members of the group. PO Giovanniello never threw § 87(2)(b) against the vehicle, nor did he witness any officers do so. PO Giovanniello did not threaten to arrest § 87(2)(b) or hear any other officers do so, nor did he perform a frisk of these individuals. When asked why § 87(2)(b) was not arrested, PO Giovanniello stated that he did not have probable cause to arrest him because the investigation did not find him to be related to the marijuana inside of the vehicle. PO Giovanniello did not know to whom the vehicle belonged, and did not know if it belonged to § 87(2)(b).

Police Documents

Brooklyn South Narcotics Division 70th Precinct Module

The roll call [Encl. 16a] identified Sgt. Dennis Bowen, PO Megan O’Malley, and PO Anzelmo Giovanello as working with the SNEU team on a tour of 9:27am through 6:00pm.

Stop and Frisk Reports

The stop and frisk reports [Encl. 21a-21c] were requested on the following dates: July 16, 2007, September 19, 2007, and March 27, 2008. Handwritten stop and frisk reports were also requested on August 21, 2007, from Brooklyn South Narcotics and the 70th Precinct. The requests yielded negative results.

CCRB Histories

§ 87(2)(b) § 87(2)(b) has filed previous complaints with the CCRB [Encl 3a-3k]. § 87(2)(b)

§ 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Sgt. Dennis Bowen has one substantiated allegation in his eleven year tenure [Encl 4c-4g]. In case number 200603613 he received charges for not obtaining medical treatment. PO Megan O'Malley has no substantiated allegations with the CCRB in her five year tenure [Encl. 4a]. PO Anzelmo Giovaniello has no substantiated allegations with the CCRB in his four year tenure [Encl. 4b].

[§ 87(2)(b)] [§§ 86(1)
(b)(3)&(b)] [§ 87(2)(c)] [REDACTED].

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) [REDACTED] identified Sgt. Dennis Bowen by name, and his participation in the incident was confirmed during his CCRB interview. The arrest reports from the time and place of occurrence identified PO Anzelmo Giovaniello as the arresting officer. This was confirmed through the Brooklyn South Narcotics Division roll call [Encl. 16a], which also identified PO Megan O'Malley.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] § 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED] § 87(2)(g) [REDACTED]
[REDACTED].

Disputed and Undisputed Facts

There is no dispute that § 87(2)(b) [REDACTED] was stopped and frisked by Sgt. Bowen § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegations Not Being Pled

§ 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Assessment of Evidence

§ 87(2)(b) [REDACTED] stated that he was approached by Sgt. Bowen when he was walking down § 87(2)(b) [REDACTED]
§ 87(2)(b) [REDACTED] was on the sidewalk and did not have physical or verbal interaction with any civilians during this time. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

PO O'Malley stated that she observed a group of several individuals standing on the sidewalk. One of them was holding a screwdriver while apparently attempting to gain entry into a parked vehicle through the passenger-side door, though she was unable to state which individual held the screwdriver. PO O'Malley did not recall if there were any passengers inside of the vehicle at this time. Sgt. Bowen and PO

Giovaniello stated that there were two individuals, § 87(2)(b) and § 87(2)(b) seated in the front of the vehicle. They were hunched over the dashboard, and another individual, § 87(2)(b) was standing outside of the vehicle leaning towards the front passenger-side window from an unknown distance. Sgt. Bowen's and PO Giovaniello's observations were supported by the arrest paperwork [Encl. 11a and 10a-10b] which noted that PO Giovaniello initially observed § 87(2)(b) was inside of the vehicle with another occupant. § 87(2)(g)

In regard to the alleged screwdriver, PO O'Malley mentioned that an individual outside of the vehicle had it in his hand and Sgt. Bowen stated that one of the males inside of the vehicle possessed it. § 87(2)(g)

§ 87(2)(b) Sgt. Bowen stated that one of the occupants had a screwdriver in his hand, but he was not able to describe when he noticed the screwdriver, where the occupant was seated, or his actions in relation to the screwdriver. § 87(2)(g)

PO Giovaniello and Sgt. Bowen initially observed § 87(2)(b) and § 87(2)(b) seated in the front of the vehicle, hunched over the dashboard area. Sgt. Bowen made the decision to perform a stop of § 87(2)(b) and the occupants of the vehicle based on the behavior of § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that Sgt. Bowen told him, "Shut the fuck up and put your hands against the vehicle." § 87(2)(b) complied and Sgt. Bowen conducted a frisk of § 87(2)(b)'s person. Sgt. Bowen denied using profane language when speaking with § 87(2)(b)

There is no dispute that Sgt. Bowen conducted a frisk of § 87(2)(b) § 87(2)(g)

§ 87(2)(b) When he approached § 87(2)(b) he did not ask him any questions. Sgt. Bowen initially stated that § 87(2)(b)'s hands were on the vehicle when he was leaning towards the passenger side window. He later stated that § 87(2)(b) had his hands in his pockets and subsequently removed them from his pockets, making a gesture towards his front torso/waistband area. Sgt. Bowen instructed § 87(2)(b) to place his hands on the vehicle and conducted a frisk of his waistband and body. Sgt. Bowen later stated that § 87(2)(b) moved his hands from the vehicle to his waistband during the frisk, and not during the initial approach. Sgt. Bowen provided various versions of his observation, which eventually led him to place § 87(2)(b) against the vehicle with his hands spread on the roof of the car. Sgt. Bowen conducted a frisk of his waistband and body, which yielded negative results.

§ 87(2)(b) stated that when Sgt. Bowen approached him he had his hands at his sides, not in his pockets, and lifted them up towards his shoulders as Sgt. Bowen walked towards him, in an effort to show that he did not have anything in his hands. Sgt. Bowen accounts for this motion in one of the various statements he provided to the CCRB. § 87(2)(g)

§ 87(2)(g)

Pursuant to the frisk, § 87(2)(b) alleged that Sgt. Bowen conducted a search of his person. He alleged that Sgt. Bowen placed his hands inside of his pockets, removed his wallet, and pulled his pants below his boxers. Sgt. Bowen stated that he never conducted such a search. Sgt. Bowen acknowledged that a stop and frisk report was prepared for § 87(2)(b) but he failed to explain how § 87(2)(b)'s identifying information was obtained. § 87(2)(g)

§ 87(2)(b) He explained that Sgt. Bowen removed his wallet, which had his driver's license, and PO Giovaniello noted § 87(2)(b)'s license number in his memo book [Encl. 13c], which was the only record of the stop and frisk report. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that during the frisk Sgt. Bowen pushed his head onto the hood of the vehicle and continued to use profanities towards him. While doing so § 87(2)(b) stated that Sgt. Bowen squeezed his testicles through his pants. Sgt. Bowen denied using physical force against § 87(2)(b) including the squeezing of his testicles. While standing by the vehicle § 87(2)(b) alleged that PO O'Malley told him he was a "fucking crack head," but PO O'Malley denied this allegation. § 87(2)(g)

§ 87(2)(b) was allowed to leave the scene of the incident, but remained outside of the building when § 87(2)(b) was arrested. § 87(2)(b) alleged that while he was walking towards his building, Sgt. Bowen told him, "Get the fuck out of here," or he would be arrested. Sgt. Bowen denied using profanities at any point and stated that he never threatened to arrest § 87(2)(b) § 87(2)(g)

Allegation A: Discourtesy: Sgt. Dennis Bowen spoke obscenely and/or rudely to § 87(2)(b)

Allegation F: Discourtesy: PO Megan O'Malley spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Bowen used profanities throughout the incident, specifically telling him to "shut the fuck up" and "get the fuck out of here." Sgt. Bowen stated that he never used such language. § 87(2)(b)

§ 87(2)(b) also alleged that PO O'Malley used profanities and called him a "fucking crack head." PO O'Malley refuted this statement, and clarified that she did not use profanities at any point during the incident. § 87(2)(g) It is therefore

recommended that allegations A and F be closed as **unsubstantiated**.

Allegation B: Abuse of Authority: Sgt. Dennis Bowen stopped § 87(2)(b)

Allegation D: Abuse of Authority: Sgt. Dennis Bowen frisked § 87(2)(b)

Allegation E: Abuse of Authority: Sgt. Dennis Bowen searched § 87(2)(b)

§ 87(2)(g)

In *People vs. DeBour*, the Court of Appeals established four levels of police intrusion, and the amount of suspicion needed to justify each level. § 87(2)(g)

The *NYPD Street Encounters-Legal Issues* memo book [Encl 1a] insert explains that while conducting a level-three stop an officer is permitted “to frisk the subject for a deadly weapon, or instrument capable of causing serious physical injury,” as long as the officer “reasonably suspects he is in danger of physical injury.” Barry Kamins’s *New York Search and Seizure Law* [Encl. A] further notes that an officer must have “reasonable suspicion that a suspect has or is about to commit a crime and a reasonable suspicion that the suspect is armed and dangerous.” Sgt. Bowen alleged that he observed § 87(2)(b) make a “furtive motion,” which raised his level of suspicion. § 87(2)(g)

§ 87(2)(g)

As stated in *PD vs. Dowd and Rose* [Encl. B] “An officer is charged to know the law governing searches and seizures, at least to the extent that the law is clear enough to be free from fair dispute about its applicability and meaning. Failure to act in accordance with clear law will generally be presumed to involve fault.” § 87(2)(g)

It is therefore recommended that allegations B, D, and E be closed as **substantiated**.

Allegation C: Abuse of Authority: Sgt. Dennis Bowen stopped § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that allegation C be closed as **victims unavailable**.

Allegation G: Physical Force: Sgt. Dennis Bowen used physical force against § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Bowen pushed his head down onto the vehicle while conducting the frisk and he also squeezed his testicles numerous times, which caused § 87(2)(b) to jolt in pain. Sgt. Bowen refuted these allegations and stated that he never used physical force or touched § 87(2)(b)'s testicles.

§ 87(2)(g) it is recommended that allegation G be closed as **unsubstantiated**.

Allegation H: Abuse of Authority: Sgt. Dennis Bowen threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Bowen threatened to arrest him when he was leaving the scene of the incident. Sgt. Bowen stated that he never informed § 87(2)(b) that he was going to be arrested.

§ 87(2)(g)

it is recommended that allegation H be closed as **unsubstantiated**.

Investigator:

Cristal Rivera

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: